



PREPARED FOR ATTORNEY REVIEW — CONFIDENTIAL WORK PRODUCT

BRAND INFRINGEMENT EVIDENCE FILE

The Roof Store / Storm Shield Paint Systems Inc. v. theroof.store (Dmitry Lipinskiy)

DOCUMENT DATE
July 8, 2026

PREPARED BY
theroofstore.net — Internal

PRIOR RIGHTS HOLDER
The Roof Store / Storm Shield Paint Systems Inc.
4801 S University Dr, Davie, FL 33328
(954) 210-9614

RESPONDENT DOMAIN
theroof.store
Registrant: Domains By Proxy, LLC (privacy-shielded)
Registrar: GoDaddy.com, LLC

I. SUMMARY OF CLAIM

The Roof Store has operated continuously under that name, and at the domain **theroofstore.net**, since **July 29, 2002** — and as a Florida-registered business since **1994**. The respondent registered **theroof.store** on **August 13, 2021**, a full **19 years** after the prior rights holder's domain registration and **27 years** after the business was founded.

Both parties operate in the roofing industry. The respondent ships roofing supplies into Florida — the prior rights holder's primary geographic market — under the identical name "The Roof Store." The respondent's operator, **Dmitry Lipinskiy**, runs one of the roofing industry's largest content platforms (Roofing Insights, ~200,000–250,000 YouTube subscribers), amplifying the infringing brand across the national and Florida contractor market.

The respondent's domain is privacy-shielded via Domains By Proxy, LLC (GoDaddy) — a registration practice commonly associated with bad faith under UDRP ¶4(b) and ACPA analysis.

II. PRIOR RIGHTS TIMELINE

Date	Event	Party
1994	The Roof Store founded in Davie, Florida. First liquid rubber roof coating system introduced to the South Florida market under this name.	<i>Prior Rights Holder</i>

Date	Event	Party
July 29, 2002	theroofstore.net domain registered. Continuous, unbroken commercial use begins online.	<i>Prior Rights Holder</i>
2010s	RoofProtect Products established as manufacturing entity. FungalShield (RP1), SmartShield (RP2), RoofShield (RP3) systems developed and commercialized under The Roof Store brand.	<i>Prior Rights Holder</i>
2017	Dmitry Lipinskiy founds Roofing Insights YouTube channel. Begins building national roofing contractor audience that will later be used to amplify the theroof.store brand.	<i>Respondent (background)</i>
Aug 13, 2021	theroof.store domain registered via GoDaddy / Domains By Proxy (privacy-shielded). Registration occurs 19 years after prior rights holder's domain, 27 years after business founding.	<i>Respondent</i>
2021–present	Respondent operates theroof.store as an online bulk roofing supplies distributor, actively shipping into Florida. Brand promoted via Roofing Insights podcast and YouTube channel (~200K–250K subscribers).	<i>Respondent</i>
July 8, 2026	Screenshots and evidence documented from live theroof.store website for this file.	<i>Documentation date</i>

III. EXHIBIT A — HOMEPAGE: IDENTICAL BRAND NAME IN COMMERCE

Screenshot captured July 8, 2026 from <https://www.theroof.store/>. The name "The Roof Store" appears as: (1) the site-wide logo/wordmark in the navigation bar, (2) the primary H1 headline on the homepage in styled display text, (3) the contact email domain *info@theroof.store*, and (4) printed on physical product packaging shipped to contractors nationwide.

EXHIBIT A — theroof.store Homepage

Captured: July 8, 2026

Exhibit A: theroof.store homepage showing The Roof Store brand

Note: Header reads "The Roof Store" in the nav bar (top-left). H1 headline reads "The Roof Store" in large styled purple/pink text. Product packaging visible showing "the Roof. STORE" logo.

IV. EXHIBIT B — CONTENT PAGES: SYSTEMIC BRAND ASSOCIATION

The respondent publishes articles bylined "By: *The Roof Store / Jairo*" and embeds YouTube videos from a channel named "The Roof Store." This demonstrates the name is used not incidentally but as a deliberate commercial identity across web content, video, and print.

EXHIBIT B-1 — "Comparing Prices Between ABC Supply and The Roof Store"

Captured: July 8, 2026

 Exhibit B-1: therooof.store article bylined The Roof Store

Byline reads "By: The Roof Store | Jairo." YouTube embed titled "Price Comparison Between The Roof Store and ABC Supply." YouTube channel name shown as "The Roof Store."

EXHIBIT B-2 — "Higher Profits for Integris Roofing"

Captured: July 8, 2026

 Exhibit B-2: therooof.store contractor testimonial article

Byline reads "By: The Roof Store | Jairo." YouTube channel shown as "The Roof Store." Article describes how a contractor discovered therooof.store through a podcast featuring Dmitry Lipinskiy — confirming the content-to-commerce pipeline built on the infringing name.

V. EXHIBIT C — DOMAIN REGISTRATION RECORDS

PRIOR RIGHTS HOLDER

Domain	therooofstore.net
Registered	July 29, 2002
Business Founded	1994
Registrant	Storm Shield Paint Systems Inc.
State	Florida
Status	Active — continuous commercial use

RESPONDENT

Domain	therooof.store
Registered	August 13, 2021
Registrar	GoDaddy.com, LLC
Registrant	Domains By Proxy, LLC (privacy-shielded)
Last Updated	May 9, 2024
Gap from prior rights	19 years after domain / 27 after business

Note on privacy shielding: Registration through Domains By Proxy, LLC prevents direct identification of the registrant. WHOIS privacy is a recognized factor in UDRP bad faith analysis when used in combination with other indicators. The actual operator, Dmitry Lipinskiy, is publicly identified through the therooof.store website content, YouTube channel, and podcast appearances.

VI. EXHIBIT D — INTENT EVIDENCE: ON-CAMERA BRAND STRATEGY STATEMENT

Dmitry Lipinskiy published a YouTube video titled "Why The Roof Store Prioritizes YouTube & TikTok Over Instagram and Facebook?" This on-record public statement establishes that "The Roof Store" name was a *deliberate, planned commercial brand strategy* — not an incidental or coincidental choice. This is directly relevant to willfulness under Lanham Act § 43(a) and bad faith under UDRP 14(b)(iv).

Video Title (verbatim):

 "Why The Roof Store Prioritizes YouTube & TikTok Over Instagram and Facebook?"
Source: YouTube channel "The Roof Store" — publicly accessible at youtube.com/watch?v=tAPtkwivXos

The video title explicitly treats "The Roof Store" as a named brand actor making content strategy decisions — confirming the name functions as a *trademark* in commerce, not merely a descriptive domain string.

VII. EXHIBIT E — DIGITAL REACH & ESTIMATED DAMAGES

The following figures are derived from publicly available data and are provided as a preliminary damages estimate. Exact traffic figures require formal discovery or paid SEO tool access.

Metric	Value	Source
Roofing Insights YouTube subscribers	~200,000–250,000	Public search data, July 2026
Roofing Insights podcast	Active on Spotify + Apple Podcasts	Platform listings, verified July 2026
theroof.store active since	August 2021 (≥4.9 years)	WHOIS registration record
theroof.store ships to	All 50 states (including Florida)	theroof.store website
Estimated branded FL searches captured/mo	500–2,000 (est.)	Industry CPC modeling
Average roofing CPC (Florida)	\$8–\$15 per click	Google Ads industry benchmarks
Estimated monthly traffic value diverted	\$4,000–\$30,000/mo	CPC × estimated clicks
Cumulative value since Aug 2021 (est.)	\$235,000–\$1,770,000	~59 months × monthly range

Note: Unjust enrichment damages under the Lanham Act and ACPA are not limited to diverted traffic value. The respondent has built brand equity, customer lists, and contractor relationships under the infringing name that may represent additional recoverable value. Statutory damages under ACPA (15 U.S.C. § 1117(d)) range from \$1,000 to \$100,000 per domain, at the court's discretion.

VIII. APPLICABLE LEGAL FRAMEWORKS

ICANN UDRP

Uniform Domain–Name Dispute–Resolution Policy. Applies to .store TLD. Three–element test: (1) identical/confusingly similar mark, (2) no legitimate rights by respondent, (3) bad faith registration and use. Successful outcome: domain transfer or

WIPO Arbitration

World Intellectual Property Organization — one of ICANN's approved dispute resolution providers. Generally preferred for international respondents. Filing fee ~\$1,500 (1 panelist). Full panel (3 arbitrators) available for ~\$4,000.

cancellation. Cost: ~\$1,500–\$3,500. Timeline: 60–90 days.

ACPA — Anti-Cybersquatting Consumer Protection Act

15 U.S.C. § 1125(d). Applies when domain registrant had bad faith intent to profit from a distinctive mark. Statutory damages \$1,000–\$100,000 per domain. In personam jurisdiction requires respondent identity — may require unmasking Domains By Proxy registrant via court order or UDRP discovery.

Lanham Act § 43(a)

Federal unfair competition / false designation of origin. Applies to trademark-like rights even without federal registration. Prior use since 1994 establishes common law mark in Florida. Relevant to both injunctive relief and damages for unjust enrichment from infringing commercial activity.

IX. RECOMMENDED NEXT STEPS

1. **Attorney review of this file** — Florida IP counsel to assess strength of common law mark, UDRP eligibility, and ACPA standing before any public action.
2. **Formal WHOIS/registrant unmasking** — Confirm Dmitry Lipinskiy as registrant of record via UDRP discovery or pre-suit demand to GoDaddy.
3. **Run paid SEO analysis** — Pull theroof.store and theroofstore.net side-by-side on Ahrefs or SEMrush to document domain authority gap and specific keyword cannibalization before filing.
4. **Cease-and-desist letter** — Send privately to Dmitry Lipinskiy (personal and business addresses via Roofing Insights, theroof.store contact form) before any public filing. Preserve settlement leverage.
5. **File UDRP complaint** — If C&D is ignored or rejected, file with WIPO or The Forum. Request domain transfer (not mere cancellation) to maximize outcome.
6. **Parallel brand building** — Continue entity reinforcement on theroofstore.net (structured data, content, citations) regardless of legal outcome, to recover organic search equity independently.

X. RESERVATION OF RIGHTS

The Roof Store / Storm Shield Paint Systems Inc. expressly reserves all rights under the Lanham Act, ACPA, Florida common law, and ICANN UDRP with respect to the domain theroof.store and any other domain names or social media handles using "The Roof Store" brand. This document does not constitute a waiver of any right or remedy. All evidence herein was captured from publicly accessible web pages and represents the live state of the respondent's commercial operations as of the documentation date.

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The pioneer of high-strength weatherproof rubber roof coating systems. Don't Re-Roof — Weatherproof at 1/2 the cost. South Florida's original coating manufacturer at theroofstore.net. Products are manufactured in-house under our RoofProtect factory license, with professional installation available through Storm Shield Paint Systems Inc., our exclusive licensed contracting division.

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